

How to handle illegal interview questions and know your rights as a candidate — Action Checklist

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KNOW YOUR LEGAL PROTECTIONS

- ☐ **Know the Five Laws:** Memorize the five federal employment discrimination laws (Title VII, ADA, ADEA, GINA, Pregnancy Discrimination Act) before your next interview so you can instantly recognize when a question crosses a legal line.
- ☐ **Recall Title VII Coverage:** Remember that Title VII prohibits discrimination based on race, color, religion, sex, and national origin, and applies to employers with 15 or more employees—this is the most frequently invoked protection in hiring cases.
- ☐ **Understand ADA Limits:** Know that interviewers cannot ask about your disability status, medical history, or accommodation needs before a job offer is made, though they can ask whether you can perform specific job functions with or without reasonable accommodation.
- ☐ **Recognize Age Proxies:** Remember that the ADEA protects workers 40 and older from age-based questions, so interviewers asking about graduation years, career length, or retirement plans may be violating federal law.

RESPOND IN THE MOMENT

- ☐ **Identify Disguised Questions:** Watch for disguised versions of illegal questions, such as asking about hobbies that signal religion, favorite charities, or how you spend weekends—these often function as proxies for protected characteristics.
- ☐ **Use Deflection Language:** Respond to suspicious questions by saying something like "How is that related to the job?" or "Can you help me understand how that relates to this position?" to redirect without confrontation.
- ☐ **Avoid Apologizing:** Do not apologize or explain yourself when declining to answer an inappropriate question—maintaining composure signals confidence and prevents you from appearing defensive or guilty.
- ☐ **Ask Clarifying Questions:** Ask follow-up questions to identify whether an interviewer genuinely needs job-relevant information or is probing into protected territory—this buys you time to think and reveals intent.

TAKE ACTION IF WRONGED

- ☐ **Document Immediately:** Write down every detail of an illegal or inappropriate interview question while the conversation is still fresh, including the exact wording, context, and your response.
 - ☐ **File an EEOC Complaint:** If you believe you experienced discrimination, file a complaint with the Equal Employment Opportunity Commission, which enforces federal discrimination laws and investigates employer violations.
 - ☐ **Check State Protections:** Research your state's employment discrimination laws, as many states extend protections beyond federal minimums, including coverage for smaller employers and additional protected categories.
 - ☐ **Reject Self-Blame:** Stop replaying the interview wondering if you handled it wrong—your discomfort is valid, and the law exists precisely because employers routinely overstep boundaries.
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.